Alabama Rules of Criminal Procedure

Rule 34. Form, content, and service of motions and requests.

Rule 34.2. Hearing; oral argument.

Upon request of any party, or on its own initiative, the court may set any motion for hearing. The court may limit or deny oral argument on any motion, unless otherwise provided by these rules.

Committee Comments

The purpose of Rule 34.2 is to give the court maximum discretion in using whatever method it desires to rule on a motion. Giving the trial courts this discretion will permit judges to rule on motions in the manner that is most comfortable to them.